

HE Green Paper: response to question 5

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This post is part of an [ongoing series](#) where I intend to develop my full *personal* (not institutional) response to the HE Green Paper. Comments are welcome to refine this.

The Green Paper asks (as question 5):

Do you agree with the proposals on:

- a) what would constitute a 'successful' QA review*
- b) the incentives that should be open to alternative providers for the first year of the TEF*
- c) the proposal to move to differentiated levels of TEF from year two?*

Provisional response:

- a. I agree with these proposals for what would constitute a successful QA review (“meets UK expectations” or higher).
- b. I do not agree with the proposed incentives for any provider, whether alternative or established. However, for smaller, new and alternative providers it seems clear that the proposed incentives are disproportionately outweighed by the risks and is hardly the “level playing field” that is sought. Firstly, fee increases tied to inflation are likely to be extremely negligible for the foreseeable future. The most recent forecasts put this at 0%, so there is very little financial incentive for any type of institution. The costs of achieving TEF levels is likely to grossly outweigh any financial benefit to institutions. Indeed, depending on the metrics developed, these costs will extend to: internal staffing to write TEF documentation; additional teaching quality oversight staff; additional training

needs; subscriptions to metrics packages and data-management packages. This cost vs. benefit situation will be disproportionately difficult for smaller and alternative institutions to bear and so tilts the playing field further in the gaming of the exercise towards large established players.

While, then, there might be a reputational benefit to any kind of provider from achieving QA status in TEF year one (even if there is no financial benefit), again, as per my answer to question 4, it is unlikely that TEF will have any substantive near-term impact on the reputation of more-established providers (it is doubtful and untested as to whether it will have a longer term impact). It is also unclear that these reputational benefits will play well on the global stage as they are misaligned with HE priorities elsewhere.

The proposal that alternative providers could be incentivized through an accelerated recruitment rate (the AP Performance Pool) is also difficult at this stage. The Green Paper proposes a number of untested experimental practices for the HE market. However, there have been a number of scandals pertaining to new recruitment at alternative and new providers that were not caught even with the tighter monitoring regime, let alone with the accelerated track proposed here. This places the international reputation of UK HE, which has substantial national and international economic and social benefits, in jeopardy.

Furthermore, there is a problematic conflicting logic here that intersects with question 23. Clearly, the incentivization of alternative providers has to be read in the context of the July 2015 document “Specific course designation: guidance for alternative higher education providers” (SCD). Yet that document makes clear that “In general the information supplied by providers as part of the specific course designation application process will be treated in confidence”. In other words, commercial sensitivities render QA processes non-transparent. A great deal more trust can be placed in QA processes where the data is generally available for inspection. Rather, then, as per question 23, than removing this requirement for transparency, access to the loan book should be dependent upon an independent, QA process that holds the general peer-confidence of the HE sector. If not, then the reputation of any TEF will be cast into serious doubt, not least in an international context where the value of UK degrees will be substantially degraded.

Given that BIS frequently interacts directly with alternative providers, this entanglement with recruitment caps also makes hollow the assertion in the Green Paper that “TEF assessments will be made independently from Government”. For instance, SCD says that:

For 2016/17, performance will be determined by BIS reviewing quantitative and qualitative information. Providers that want to benefit from the 30% increase will be expected to provide evidence...

BIS’s involvement in this selection of “best” providers for 2016/2017 appears to override the Green Paper’s assertion that government will not be involved. I therefore have serious doubts about the QA process here and its independence *precisely because* of its link to incentives for APs with which the government has specifically signaled that it will directly be involved.

c. I do not agree with the proposal to move to differentiated levels of TEF in year two because the Green paper provides insufficient information to judge what this entails. This is far too swift a timetable.

It is virtually impossible to answer this question adequately at the moment. The Green Paper notes that “A technical consultation will be run in 2016 which will cover the operational detail of metrics and of the assessment criteria, process and outcomes, as well as looking at the evidence to be submitted alongside applications and how it will be used for provider level assessment”. This question therefore asks institutions to consent to regulation by a process of which they have been given no details. This is an unfair contract.

Furthermore, in answering this question the Green Paper asks institutions to be willing guinea pigs for untested teaching metric procedures. The Green Paper states that “The criteria and metrics used for TEF will develop over time; the TEF will evolve as more metrics are integrated, as we learn from previous years and as greater evidence and understanding of what constitutes excellent teaching develops”. The phrase “as we learn from previous years” is *extremely* worrying. Why should institutions suffer in the present while a regulatory framework finds its feet at their expense? We have evidence of this type of problem occurring in the past. In a November 2015 speech at the

Political Affairs in Higher Education conference, the unintended damage to part-time student numbers was described by David Willetts as the greatest regret of his tenure. The speed at which TEF is being implemented, on untested grounds, gives rise to the same potentials for unforeseen consequences.

The government should, therefore, move much more carefully and slowly on this. Designing a set of measures that carry the confidence of the sector (across a range of providers) will minimise the potential damage from moving so quickly to differentiated awards. Furthermore, the government should outline what measures will be used so that institutions can give informed consent about their participation. Otherwise, this exercise seems to sit entirely divorced from other rhetorics in the Green Paper: it will be a top-down, regulatory-heavy framework that unfairly penalises institutions through arbitrary government decision making. I am sure that this is not what the government wants and urge this to be reconsidered as a matter of urgency.